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TENTATIVE RULING

DEPARTMENT

207

HEARING DATE

August 20, 2026

CASE NUMBER

25SMCV03853

MOTION

Demurrer to First Amended Complaint

MOVING PARTIES

Defendants Danny Strong, Danny Strong Productions, Paolo Nieddu, Carlito Rodriguez, Howard Kurtzman, Matt Pyken, and Dennis Hammer

OPPOSING PARTY

Plaintiff Khaled Ouaz a/k/a Kade Wise

BACKGROUND

This case arises from a dispute between employee and employer.

On July 28, 2025, Plaintiff Khaled Ouaaz a/k/a Kade Wise ("Plaintiff") brought suit against Defendants 20th Century Television, Inc., fka 20th Century Fox Television, Inc. ("20th Century"); Lee Daniels Entertainment, Ltd. ("Lee Daniels Ent."); Danny Strong Productions ("Danny Strong Prod."); Imagine Entertainment, Inc. ("Imagine"); Dana Walden ("Walden"); Gary Newman ("Newman"); Lee Daniels ("Daniels"); Danny Strong ("Strong"); Sanaa Hamri ("Hamri"); Paolo Nieddu ("Nieddu"); Brian Grazer ("Grazer"); Carlito Rodriguez ("Rodriguez"); Jonnie Davis ("Davis"); Carolyn Cassidy ("Cassidy"); Howard Kurtzman ("Kurtzman"); Brett Mahoney ("Mahoney"); Diane Ademu-John ("Ademu-John"); Ilene Chaiken ("Chaiken"); Craig Berger ("Berger"); Matt Pyken ("Pyken"); Dennis Hammer ("Hammer"); Joshua Allen ("Allen"); Eric Haywood ("Haywood"); Jasheika James; Janeika James; Dianne Houston ("Houston"); and Jamie Rosengard ("Rosengard").

The operative First Amended Complaint ("FAC") was filed on September 15, 2025, alleging eighteen causes of action as follows:

1.

Breach of Contract

2.

Intentional Misrepresentation

3.

Fraudulent Concealment

4.

Actual Fraud

5.

Defamation of Character

6.

Breach of Implied Covenant of Good Faith and Fair
Dealing

7.

Intentional Interference with Contractual Relations

8.

Intentional Interference with Prospective Economic
Relations

9.

Demotion Discrimination

10. Promotion

Discrimination

11. Political

Discrimination

12. Intersectional

Discrimination

13. Disparate

Impact Discrimination

14. Retaliation

15. Right

of Publicity

16. Civil

Conspiracy

17. Intention

Infliction of Emotional Distress

18. Negligence

Demurring Defendants Danny Strong, Danny Strong Productions, Paolo
Nieddu, Carlito Rodriguez, Howard Kurtzman, Matt Pyken, and Dennis Hammer (“Demurring
Defendants”) demur to the FAC on the grounds that it fails to state facts
sufficient to constitute causes of action, pursuant to Code of Civil Procedure
section 430.10, subdivision (e).

Plaintiff opposes the Demurrer and Demurring Defendants reply.

ANALYSIS

1.

DEMURRER

"It is black letter law that

a demurrer tests the legal sufficiency of the allegations in a complaint."

(Lewis v. Safeway, Inc. (2015) 235 Cal.App.4th 385, 388.) In

testing the sufficiency of a cause of action, a court accepts "[a]s true all

material facts properly pled and matters which may be judicially noticed but

disregard contentions, deductions or conclusions of fact or law. [A court also gives] the complaint a

reasonable interpretation, reading it as a whole and its parts in their

context." (290 Division (EAT), LLC v.

City & County of San Francisco (2022) 86 Cal.App.5th 439, 450 [cleaned

up]; Hacker v. Homeward Residential, Inc. (2018) 26 Cal.App.5th 270, 280

["in considering the merits of a demurrer, however, "the facts alleged in the pleading are deemed to be true, however improbable they may be"].)

Further, in ruling on a

demurrer, a court must "liberally construe" the allegations of the complaint

"with a view to substantial justice between the parties." (See Code Civ. Proc., § 452.) "This rule of liberal construction means that

the reviewing court draws inferences favorable to the plaintiff, not the

defendant." (Perez v. Golden Empire Transit Dist. (2012) 209

Cal.App.4th 1228, 1238.)

In summary, "[d]etermining

whether the complaint is sufficient as against the demurrer on the ground that

it does not state facts sufficient to constitute a cause of action, the rule is

that if on consideration of all the facts stated it appears the plaintiff is

entitled to any relief at the hands of the court against the defendants the

complaint will be held good although the facts may not be clearly stated, or

may be intermingled with a statement of other facts irrelevant to the cause of

action shown, or although the plaintiff may demand relief to which he is not

entitled under the facts alleged." (Gressley

v. Williams (1961) 193 Cal.App.2d 636, 639.)

A.

FAILURE TO STATE A CAUSE OF ACTION

The Court previously

sustained the demurrer of Defendants Twentieth Century Fox Film Corporation

d/b/a 20th Television, f/k/a Twentieth Century Fox Television

(incorrectly sued as “20th Century Studios, Inc. f/k/a 20th

Century Fox Television, Inc.; Lee Daniels Entertainment, Ltd.; Imagine

Entertainment, LLC; Dana Walden; Gary Newman; Lee Daniels; Sanaa Hamri; Brian

Grazer; Carolyn Cassidy; Diane Ademu-John; Ilene Chaiken; Craig Brewer; Joshua

Allen; Eric Haywood; and Jamie Rosengard (the “Fox Defendants”) on the following

grounds:

1. Plaintiff's

breach of contract cause of action failed to allege facts sufficient to

constitute a cause of action because Plaintiff did not allege any breach of the

two identified clauses of his contract.

The consent exclusions clause precluded Fox from using Plaintiff's name,

voice, or likeness in connection with the merchandising of or commercial

tie-ins to political or religious advertising, and the indemnification clause

required Fox to indemnify, defend, and hold Plaintiff harmless from and against

any and all third party claims, liability, losses, damages, costs, expenses,

judgments, and penalties arising out of issues pertaining to the production,

distribution, and/or exploitation of the series. The Court determined that the indemnification

provision did not require Fox to indemnify Plaintiff against losses from Fox's

decision not to pick up the option to make Plaintiff a series regular, and the

use of Plaintiff's image and likeness in connection with the program itself, as

alleged, did not pertain to advertising, as addressed by the consent exclusions

clause.

2. The

second, third, fourth, sixth, seventh, eighth, fifteenth and sixteenth causes

of action were all derivative of and/or dependent upon the same deficient

breach of contract allegations

3. The

fifth, ninth, tenth, eleventh, twelfth, thirteenth, fourteenth, seventeenth or

eighteenth causes of action were time barred and Plaintiff did not adequately

allege facts demonstrating that the delayed discovery rule revived them.

The Court sustained the

demurrer without leave to amend, finding that despite being given several opportunities to do so, Plaintiff failed to articulate facts that could cure the deficiencies identified above, and therefore granting leave to further amend the complaint would be futile. (See Minute Order, Apr. 30, 2026.)

On May 11, 2026, the Court denied Plaintiff's motion for reconsideration of the Court's order sustaining the Fox Defendants' demurrer.

Subsequently, Plaintiff served the Demurring Defendants, who now demur to the Complaint on the same grounds raised in the Court's ruling on the Fox Defendants' demurrer.

i.

Breach of
Contract and Derivative Causes of Action

As to the Demurring Defendants, Plaintiff alleges:

3.3. DANNY STRONG

PRODUCTIONS — is an entity of unknown form doing business in California, and the production company involved in the original creation, development and production of Empire. It is sued in its corporate capacity.

3.8 DANNY STRONG — is an individual believed to reside in California and is sued in his personal capacity and, where applicable, in his official capacity as founder and executive of Danny Strong Productions. Mr. Strong is best known as the co-creator and executive producer of Empire, and he held significant creative and production authority over the series.

3.10 PAOLO MICHEL NIEDDU — is an individual believed to reside in California and is sued in his personal capacity and, where applicable, in his official capacity as an agent or employee of 20th Century Fox, Lee Daniels Entertainment, or Danny Strong Productions. Mr. Nieddu was the lead costume designer on Empire and shared creative control over wardrobe and public presentation with Ms. Hamiri during the relevant period.

3.12 CARLITO RODRIGUEZ — is an individual believed to reside in

California and is sued in his personal capacity and, where applicable, in his official capacity as an agent or employee of 20th Century Fox, Lee Daniels Entertainment, or Danny Strong Productions. Mr. Rodriguez served as a senior executive producer and writer on Empire.

3.13. JONNIE DAVIS, CAROLYN CASSIDY, AND HOWARD D. KURTZMAN — are individuals believed to reside in California and are sued in their personal capacities and, where applicable, in their official capacities as former executives affiliated with 20th Century Fox. each held leadership roles — including oversight of programming and talent development — with decision-making authority that plausibly impacted hiring, promotion, and casting.

3.14 BRETT MAHONEY, DIANE ADEMU-JOHN, ILENE CHAIKEN, CRAIG HOUSTON BREWER, DENNIS HAMMER, MATT LEWIS PYKEN, JOSHUA ALLEN, ERIC HAYWOOD, JANEIKA JAMES, JASHEIKA JAMES, JAMIE ROSENGARD, AND DIANNE HOUSTON — are individuals named as vicariously liable defendants based on their roles as writers, producers, or executives affiliated with Empire during the relevant time period. They are sued in their official and/or personal capacities where applicable.

8.3 Paolo Nieddu, serving as costume designer for the production, similarly operated as an agent of 20th Century Fox and participated in the furnishing of materials that led to the contract's violation. His actions, in coordination with Defendant Ms. Hamri, altered my onscreen appearance and directly contributed to the use of my likeness in connection with political messaging, a protected exclusion under the contract.

8.4. Dana Walden, Gary Newman, Jonnie Davis, Carolyn Cassidy, and Howard Kurtzman, as senior executives overseeing the production and legal signatories or ratifiers of the employment terms, may bear managerial responsibility. Their role in concealing the contract breach may support theories of ratification or deliberate failure to mitigate ongoing harm.

8.5 I further allege that Lee Daniels Entertainment, Danny Strong Productions, and Imagine Entertainment may have acted as co-participants in the breach, or subsequently ratified it by failing to disclose or remedy the misconduct committed by agents under their operational direction. I reserve the rights to amend this complaint to formally name: them

as responsible parties based on evidence adduced during discovery; and The Walt Disney Company as a successor-in-interest should discovery demonstrate sufficient grounds for parent liability.

Thus, Demurring Defendants are alleged to be responsible as agents/co-participants in the same manner as the previously demurring Fox Defendants.

Further, as Demurring Defendants point out, the allegations against Hammer and Pyken are identical to the allegations against the previously demurring Defendants Ademu-John, Chaiken, Brewer, Allen, Haywood, and Rosengard.

Similarly, the allegations against Kurtzman are identical to the allegations against previously demurring Defendants Cassidy, Walden, and Newman; the allegations against Strong and Danny Strong Productions are identical to the allegations against previously demurring Defendants Daniels, Grazer and their production entities; and the allegations against Nieddu fail for the same reasons allegations against previously demurring Defendant Hamri fail, as both Nieddu and Hamri were involved in the costume department.

As such, Plaintiff has failed to allege a breach of contract cause of action or the derivative second, third, fourth, sixth, seventh, eighth, fifteenth and sixteenth causes of action against Demurring Defendants for the same reasons Plaintiff failed to allege those causes of action against the previously demurring Fox Defendants.

In opposition, Plaintiff argues that these issues cannot be resolved against Plaintiff at the pleadings stage. As the Court has already resolved these issues against Plaintiff at the pleadings stage, and explained why Plaintiff's pleading alone fails to allege facts sufficient to constitute a cause of action, the Court disagrees.

Therefore, the Court sustains Demurring Defendants' demurrer to the first, second, third, fourth, sixth, seventh, eighth, fifteenth and sixteenth causes of action for the same reasons it sustained the previously demurring Fox Defendants' demurrer to these causes of action.

Statute of
Limitations

Demurring Defendants argue that for the same reasons the Court sustained the Fox Defendants' demurrer on the grounds that the statute of limitations barred Plaintiff's remaining claims, it should similarly sustain Demurring Defendants' demurrer to the remaining claims for the same reasons.

In opposition, Plaintiff reiterates his arguments that Defendants concealed their own wrongdoing, preventing Plaintiff from being put on inquiry notice and that Plaintiff did not actually discover Defendants wrongdoing until years later when he finally looked into it.

As the Court has previously explained, to the extent Plaintiff premises his delayed discovery on Defendants purportedly concealing Plaintiff's contract from him, so he could not discover that Defendants' conduct violated his contract, (1) Plaintiff does not allege facts supporting his claim that Defendants concealed his contract from him, because Plaintiff does not allege he asked and was refused access to his contract at any point in time; (2) the contract provisions themselves do not support Plaintiff's assertions that Defendants violated any contractual provisions, as currently alleged; and (3) when Plaintiff actually discovered the potential wrongdoing is irrelevant to when Plaintiff was put on inquiry notice as a matter of law.

Therefore, the Court sustains Demurring Defendants' demurrer to the remaining causes of action for the same reasons it sustained the Fox Defendants' demurrer to the time-barred causes of action.

2.

LEAVE TO AMEND

A

plaintiff has the burden of showing in what manner the complaint could be amended and how the amendment would change the legal effect of the complaint, i.e., state a cause of action. (See *The Inland Oversight Committee v. City of San Bernardino* (2018) 27 Cal.App.5th 771, 779; *PGA West Residential Assn., Inc. v. Hulven Int'l, Inc.* (2017) 14 Cal.App.5th 156, 189.) A plaintiff must not only state the legal basis for the amendment, but also the factual allegations sufficient to state a cause of action or claim. (See *PGA*

West Residential Assn., Inc. v. Hulven Int'l, Inc., supra, 14 Cal.App.5th at p. 189.) Moreover, a plaintiff does not meet his or her burden by merely stating in the opposition to a demurrer or motion to strike that “if the Court finds the operative complaint deficient, plaintiff respectfully requests leave to amend.” (See Major Clients Agency v Diemer (1998) 67 Cal.App.4th 1116, 1133; Graham v. Bank of America (2014) 226 Cal.App.4th 594, 618 [asserting an abstract right to amend does not satisfy the burden].)

Here, with respect to the breach of contract of claim, Plaintiff argues he can allege new facts that Defendants breached the consent clause by using his image and likeness in connection with advertising, as articulated in his June 3, 2026 Reply in support of his Motion for Leave to Amend. Plaintiff’s June 4, 2026 Reply in support of his Motion for Leave to Amend indicates Plaintiff has identified new facts concerning “promotional materials, archived internet sources, episode descriptions, billing records, and related media content concerning his role on Empire.” (June 4 Reply at pp. 2, 4, 8.)

But the consent clause forbids Fox from using Plaintiff’s image/likeness for the “merchandising of, or commercial tie-ins to political or religious advertising.” (FAC ¶ 8.8 and Ex. G [emphasis added].) Thus, Defendants’ use of Plaintiff’s image or likeness in connection with episode descriptions, promotional materials, and related media content concerning his role on Empire is not political or religious advertising. Rather, those things constitute promotional materials for the show itself, which the plain language of the clause does not prohibit.

Therefore, Plaintiff has not articulated any facts that can cure the deficiency with his breach of contract and related claims.

With regard to the statute of limitations issue, Plaintiff reiterates his disagreement with the Court’s application of the law to the facts alleged in its determination that Plaintiff was on inquiry notice of his claims as a matter of law years before he actually discovered the basis for his claims, and as such, the statute of limitations bars his claims. However, Plaintiff does not articulate any new facts that would change the Court’s delayed discovery rule analysis.

As such,

Plaintiff has failed to meet his burden as Plaintiff does not identify any factual allegations that could be added to the complaint to cure the deficiencies identified above. Nor does the Court see how Plaintiff could factually plead around the breach of contract or statute of limitations problems identified above. As a result, granting leave to further amend the complaint would be futile.

CONCLUSION AND ORDER

For the reasons stated, the Court sustains Demurring Defendants' demurrer to the FAC in its entirety without leave to amend.

Further, the Court orders Demurring Defendants to serve and lodge a proposed Judgment in conformity with the ruling on or before August 27, 2026. Any objections to the proposed Judgment shall be filed and served on or before September 3, 2026.

Demurring Defendants shall provide notice of the Court's ruling and file the notice with a proof of service forthwith.

DATED: August 20, 2026 ____/s/____

Michael
E. Whitaker

Judge
of the Superior Court